

Registering Copyright for Intellectual Property in India: A Technical Guide

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Dear Editor,

A copyright is one type of intellectual property of a person. Registering copyright is crucial for professionals including dermatologists, particularly those involved in creating original written works or educational materials.^[1] In India, when a creator creates something, the copyright automatically belongs to the creator. However, registration enhances legal protection by creating a public record of the claim. It makes it easier to enforce in case of infringement.^[2] The registration process also preserves crucial evidence, such as the date of creation, affiliation of the creator (if any) during the creation, and cocreators. These are also valuable in proving ownership during legal disputes.

In India, anyone who creates something to be copyrighted can apply for the registration. The registrations apply to a wide range of creative works, including literary, artistic, music and videos, and scientific works. The copyright certificates help showcase the intellectual property in academic forums, or they can help enhance the curriculum vitae. As it seems a legal matter, many doctors or researchers may not know how to register for copyright.^[3]

In this article, we briefly describe how anyone can register the copyright of literary works in the copyright office in India, right from their desk. Registering other elements is similar to this process. For registering the copyright, the following documents and processes are required:

- 1) The literary work that needs a copyright
- 2) No objection certificate (NOC) from the institution, if affiliated

- 3) The scanned signature (the size should be <512 KB)
- 3) Online filling of the form on the copyright website
- 4) Payment of prescribed fees (currently, 500 INR for Literary, Dramatic, Musical or Artistic work)
- 5) Printing of the submitted form and acknowledgement (payment) receipt
- 6) Sending all documents by post to the copyright office

The overall process is shown in Figure 1. The literary work for which the copyright is sought should be printed. Then, along with a copy of the work, apply for an NOC from the head of the institution. This is a simple certificate that has the name and the title of the literary work and a statement that the institution does not have any objection if the copyright is registered in the name. A scanned signature needs to be uploaded. Hence, scan the signature and keep it cropped, and the size should be below 512 KB.

Keep all the information readily accessible and visit the copyright website at <https://copyright.gov.in/>. Click on the "Registration of copyright (Form-XIV)", and register for an account by clicking on "New User." After the creation of the account, log in with the user ID and password. On the website, you will not find any login option separately. Whenever you want to log in, click on the "Registration of copyright (Form-XIV)" and login options will appear. After logging in, you will get an option for "e-Filing of Application". Clicking on that button will open the next page for starting the registration process. This page also shows the steps you need to follow to register the copyright and the address to which the documents should be sent. Click on the "Click here for online Copyright Registration" to start the form. The form is self-explanatory, and you will be guided to enter the details step-by-step.

Fill out the online form with all the details, and pay the fees online (e.g., 500 INR). After the payment, you need to download the acknowledgment slip (payment slip) and copyright registration report and take a print of those documents. Upload the literary work and NOC in portable document format for completing the online process. Now, you need to send these printed forms, the literary works, and the NOC by post to the office of the registrars of the copyrights. There will be a mandatory

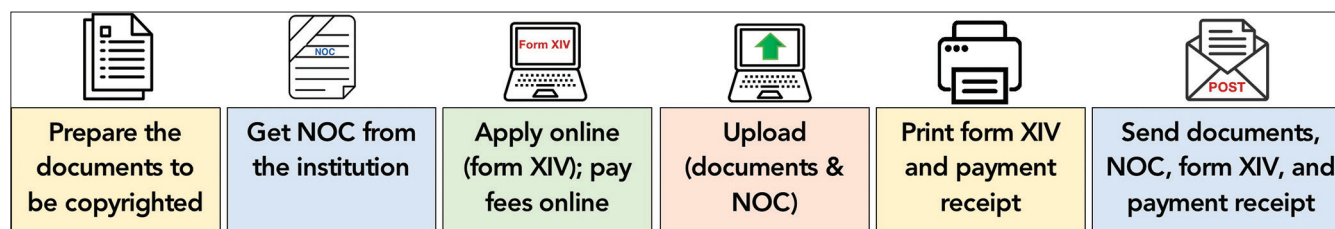


Figure 1: Brief steps for registering copyright in India

waiting period of 30 days. If no one objects during the period, it will go for scrutiny and approval. The registrar will evaluate your application and register the copyright in your name. You will get an email regarding the generation of your copyright, and you can download the certificate online. They will not dispatch any printed certificates.

If any discrepancy arises, the office will send the information via email. For example, we applied for copyright and were not aware of the requirements of the NOC. We received the discrepancy letter and rectified it by uploading the scanned documents online and also sending the same documents via post. After logging in, there is an option, "Upload Discrepancy Reply", to be used for replying to the discrepancy letter online.

Copyright registration is crucial for providing legal protection and enhancing recognition of intellectual property. In this article, we outlined a step-by-step process for online registration of copyright for medical professionals unfamiliar with the method of registration.

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